

NEWSLETTER N. 522 of May 3, 2024

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Tlc: the Authority fines a dealer for unlawful activation of SIM cards and subscriptions

€150,000 fine for using the personal data of hundreds of users without their knowledge

A company managing two telecommunications stores will have to pay a fine of €150,000 for unlawfully activating SIM cards, subscriptions, and charges for the purchase of mobile phones and GPS trackers using the personal data of hundreds of users without their knowledge.

This was established by the Privacy Authority, which defined the procedure initiated following a report from the Financial Police that had received a complaint from a user regarding charges on her credit card related to the activation of a new contract in the name of her deceased husband.

Numerous and serious violations were found during the investigation conducted by the Authority.

The Authority specifically established that the company had activated 1,300 phone cards using the data and identity documents extracted from the systems of the telecommunications provider from which it sold products or improperly retained by the stores.

Not only that: the company had activated unsolicited services by inducing customers to sign, via a tablet, without clarifying the consequences of such consents. Among the illegal activities was also the sale of mobile phones that had not been requested by the customers nor delivered to them, who found out about the purchase upon seeing installment charges on their bills.

The investigation by the Authority also revealed that the company had evaded the controls of the telecommunications provider and the related provisions regarding the processing of user data, thus acting as an independent data controller. Specifically, the company had designed its activities with the intent to use the personal data at its disposal to activate unsolicited telecommunications services or to improperly expand the contractual offer previously signed by its customers. All of this resulted in a turnover of over €80,000, achieved by involving its employees in activities aimed at systematically evading the principles of legality, fairness, and transparency required by the European Regulation.

For these reasons, and given the conduct attributable to the overall phenomenon of unlawful activations of phone cards, potentially capable of creating further and much more alarming illicit effects and obstacles to the repression of crimes, the Authority imposed a fine of €150,000 on the company and ordered a ban on further processing of customer data.

Labor: Privacy Authority, the employee has the right to access their own data

€20,000 fine imposed on a bank

The worker has the right to access their own data held by the employer, regardless of the reason for the request.

This was reiterated by the Privacy Authority, which upheld the complaint filed by a woman who had requested access to her personal file from the bank where she had been employed, to understand what information may have led to a disciplinary sanction against her.

The bank had not adequately responded to the request and had only provided an incomplete list of the documentation collected, omitting some information based on which the disciplinary sanction had been imposed.

Only following the initiation of the investigation by the Authority did the credit institution provide the former employee with the additional documentation contained in the file.

This particularly included correspondence maintained by the bank with a third party, who complained about the unlawful communication of confidential information of her husband, an account holder, to the complainant, which she had used in a judicial proceeding.

In the notes provided to the Authority, the bank argued that it had not provided the former employee with such documentation to protect the right of defense and the confidentiality of the third parties involved, as well as due to the lack of interest in access on the part of the complainant.

The Authority observed that, in general, the right of access aims to allow the data subject to have control over their personal data and to verify its accuracy. However, this right cannot be denied or

limited based on the purpose of the request. In fact, under the provisions of the Regulation, data subjects are not required to indicate a reason or a specific need to justify their requests for exercising their rights, nor can the data controller verify the reasons for the request. This interpretation has also been clarified by the Committee.

European Data Protection Board (EDPB) through the approval of the Guidelines on the right of access and is the result of a constant jurisprudential orientation of the Court of Justice. In sanctioning the bank for 20,000 euros, the Authority took into account the nature, severity, and duration of the violation, but also the absence of similar precedents.

****Gender Violence: Anonymity Guaranteed in Emergency Services Database****

The Privacy Guarantor has approved the draft decree of the Minister of Health that integrates the Information System for monitoring services provided in the context of emergency-urgent healthcare (EMUR) with a set of information related to the emergency room accesses of victims of gender violence. The draft decree takes into account the observations made by the Authority during discussions with the Ministry, which particularly concerned the anonymity of women victims of violence and those who request to give birth anonymously, as well as the updating of the entire data flow in light of the new principles regarding personal data protection dictated by the GDPR. The System was indeed established in 2008, ten years before the full application of the GDPR. In particular, the Privacy Guarantor has requested the updating of the coding and data aggregation system, the identification of the retention period for information, and the privacy roles of the various parties involved in the processing operations.

****Emerging Technologies and Anti-Money Laundering Among the Topics of the Spring Conference in Riga****

Riga, the capital of Latvia, will host from May 14 to 16, 2024, the thirty-second edition of the "Spring Conference," the annual spring event that brings together European data protection authorities, with the aim of establishing a common framework for the protection of personal data. The Conference will be particularly dedicated to some key themes, such as the analysis of EU regulations, privacy protection in emerging technologies, safeguarding health data in the digital age, and promoting effective cooperation between data protection authorities, policymakers, and businesses. As last year in Budapest, the agenda for the 2024 edition includes, alongside closed-door meetings, a public panel, both in-person and remotely (on May 16), which will focus on the increasingly close relationship between anti-money laundering regulations and data protection laws, with the aim of identifying useful strategies to strengthen compliance with both disciplines through a collaborative approach. The Guarantor will be represented by member Guido Scorza, who will speak at the panel dedicated to data protection and emerging technologies and the consequent challenges posed by an increasingly dynamic context to the safeguarding of user privacy, particularly children, and ensuring regulatory compliance. Since its inception in 1991, when the authorities of Belgium, Denmark, France, Germany, Ireland, Luxembourg, the Netherlands, and the United Kingdom met in The Hague, the "Spring Conference" has represented a key moment for European guarantors in identifying issues of common interest, exchanging information on best practices, and promoting cooperation.

****THE ACTIVITIES OF THE GUARANTOR - FOR THOSE WHO WANT TO KNOW MORE****

The most important interventions and measures recently adopted by the Data Protection Authority: the twinning with Bosnia-Herzegovina - May 2, 2024.

"Privacy Tour 2024." The initiative of the Guarantor to promote the culture of data protection and the conscious use of new technologies in the South and in small towns. Second stop Lecce, April 20. Next stop Messina, May 3.

Privacy: bilateral, close cooperation initiated between the Italian Guarantor and the German Federal Guarantor - Press release of April 21, 2024.

Privacy: bilateral between the Italian Guarantor and the German Federal Guarantor - Press release of April 18, 2024.

****NEWSLETTER of the Guarantor for the protection of personal data**** (Reg. at the Court of Rome no. 654 of November 28, 2002).

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